

Court No. - 21

Case :- WRIT - C No. - 16519 of 2022

Petitioner :- Rahul Seth

Respondent :- Purvanchal Vidyt Vitran Nigam Ltd. And 3 Others

Counsel for Petitioner :- Anubhav Chandra

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Chandra Kumar Rai,J.

Heard Sri Anubhav Chandra, learned counsel for the petitioner, Sri Udit Chandra, learned counsel for respondent nos. 1 & 2 and learned Standing Counsel for the State-respondents.

The contention is that citation to appear, is against Ravindra Kumar Seth, who was tenant of the premises owned by the petitioner. There is no recovery certificate nor citation to appear as against the petitioner. The respondents are proceeding to recover the amount from the petitioner in pursuance of the impugned citation to appear.

Sri Udit Chandra, learned counsel for respondent nos.1 and 2 seeks time to obtain instructions.

List as fresh on 7th July, 2022.

In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned citation to appear issued against Ravindra Kumar Seth.

This order will not be an impediment in case there is any separate recovery certificate or citation to appear against the petitioner.

Order Date :- 7.6.2022

Rameez

(Chandra Kumar Rai,J.) (Manoj Kumar Gupta,J.)

Court No. - 3

Case :- WRIT - C No. - 16519 of 2022

Petitioner :- Rahul Seth

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And 3 Others

Counsel for Petitioner :- Anubhav Chandra

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard Sri Anubhav Chandra, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Udit Chandra, learned counsel for the respondent No.1 and 2.

This writ petition has been filed praying for the following relief:

"(I) Issue a writ, order or direction in the nature of certiorari quashing the impugned recovery certificate dated 16.12.2021 issued by respondent No. 4 to the extent that the recovery is being affected from the petitioner.

(II) Issue a writ, order or direction in the nature of mandamus commanding the respondent authorities not to make any recovery from the petitioner in pursuance of the recovery certificate dated 16.12.2021 issued by respondent No. 4."

Sri Udit Chandra, learned counsel for the respondent No.1 and 2/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under **Para 6.5 of U.P. Electricity Supply Code, 2005** before the respondent No.2, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 7.7.2022

NLY